

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Edison	Team: Squad #06	CCRB Case #: 202303800	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 04/23/2023 11:26 AM	Location of Incident: 9th Avenue and West 36th Street	18 Mo. SOL 10/23/2024	Precinct: 14		
Date/Time CV Reported Mon, 04/24/2023 4:31 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/02/2023 12:45 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Nicholas Stolfaryder	18826	975198	MTS PCT
2. PO James Mariconi	13121	953048	MTS PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Joseph Oconnor	22714	975062	MTS PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Nicholas Stolfaryder	Force: Police Officer Nicholas Stolfaryder used physical force against § 87(2)(b)	A . Unfounded
B . PO James Mariconi	Abuse: Police Officer James Mariconi threatened to arrest § 87(2)(b)	B . Within NYPD Guidelines
C . PO Nicholas Stolfaryder	Discourtesy: Police Officer Nicholas Stolfaryder spoke discourteously to § 87(2)(b)	C . Substantiated

Case Summary

On April 24, 2023, § 87(2)(b) filed this complaint with IAB over the phone. On May 2, 2023, it was received at the CCRB via IAB Log #2023-13045.

On April 23, 2023, at approximately 11:30 a.m., PO Nicholas Stolfaryder of the 14th Precinct allegedly grabbed § 87(2)(b) as he was driving his motorcycle down 9th Avenue on West 36th Street in Manhattan (**Allegation A: Force, Unfounded**). PO James Mariconi and other officers from the 14th Precinct came over from across the street, and the officers asked § 87(2)(b) for his ID. § 87(2)(b) refused to provide it, and PO Mariconi told § 87(2)(b) that he would be arrested if he did not provide his ID (**Allegation B: Abuse of Authority, Within NYPD Guidelines**). During the stop, § 87(2)(b) told the officers that he did not know who they were initially, and PO Stolfaryder asked him if he saw a lot of people “in full fucking uniform” (**Allegation C: Discourtesy, Substantiated**). § 87(2)(b) was issued a summons § 87(2)(b).

BWC of the incident was obtained and is located in IA #33 (BR 01).

Findings and Recommendations

Allegation (A) Force: Police Officer Nicholas Stolfaryder used physical force against § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer James Mariconi threatened to arrest § 87(2)(b)

PO Stolfaryder’s BWC (BR 01), beginning at the 0:50 second mark, showed him step out into the street as § 87(2)(b) turned his motorcycle perpendicular to ongoing traffic and towards PO Stolfaryder. At the 0:55 second mark, PO Stolfaryder reached forward and placed one hand on § 87(2)(b)’s thigh, and one hand on his wrist, which was holding the motorcycle handlebars. § 87(2)(b)’s motorcycle immediately came to a stop, and PO Stolfaryder removed his hands from § 87(2)(b) and took the keys out of the ignition. At the 3:05 minute mark, PO Mariconi told the group of officers to get § 87(2)(b)’s ID, and § 87(2)(b) replied that he did not have to provide his ID because he did not do anything wrong. At the 3:15 minute mark, PO Mariconi told § 87(2)(b) “Sir, we explained to you. You’re not wearing a helmet, also your letters are obstructed. If you have no ID, you go in handcuffs and you get arrested.” § 87(2)(b) asked what he would be arrested for, and PO Mariconi replied that it would be for refusing to provide his ID.

§ 87(2)(b) testified (BR 02) that at approximately 11:30 a.m., he was driving his motorcycle south on 9th Avenue towards West 36th Street in Manhattan and was going at approximately 25 miles per hour. As he passed through the stop light intersection, he observed two officers standing in the bike lane on the far left side of the street. Out of nowhere, PO Stolfaryder, who was standing on the right side of the street, grabbed his arm while he was still driving the motorcycle. § 87(2)(b) immediately activated the brakes to prevent himself from crashing and reduced his speed until he was at a full stop. At that point, § 87(2)(b) did not know that PO Stolfaryder was a police officer, and he thought he was in the process of getting robbed. PO Stolfaryder took the keys out of the ignition, and § 87(2)(b) looked at him and realized he was wearing an NYPD uniform. § 87(2)(b) asked why he was being stopped, and PO Stolfaryder replied that it was because he was not wearing a helmet. PO Mariconi and additional officers came over from across the street, and one of the officers asked for his ID. § 87(2)(b) refused to provide it, and PO Mariconi told him that he would be arrested if he did not provide it. § 87(2)(b) eventually provided his ID to the officers, and he was issued a summons § 87(2)(b).

PO Stolfaryder testified (BR 03) that he was assigned to Traffic Safety that day, and that PO Mariconi was his field training officer for that assignment. PO Stolfaryder was standing on the

Northwest corner of 9th Avenue and West 36th Street, and PO Mariconi was standing on the Northeast corner across the street. PO Stolfaryder observed § 87(2)(b) driving his motorcycle without a helmet southbound towards West 36th Street in the right lane, and PO Mariconi informed him that they were going to stop § 87(2)(b). When § 87(2)(b) was approximately 25 feet away from them, PO Mariconi stepped into the street to stop § 87(2)(b). However, § 87(2)(b) immediately turned towards PO Stolfaryder's direction, perpendicular to the ongoing traffic. PO Stolfaryder stepped out into the street and moved in front of § 87(2)(b)'s motorcycle to stop him from making a U-turn and fleeing the scene. PO Stolfaryder reached forward and grabbed the handlebars of the motorcycle to prevent it from crashing into him, and he removed the keys from the ignition to prevent § 87(2)(b) from driving away. PO Stolfaryder may have touched § 87(2)(b) with his hands when he reached forward to stop the motorcycle, but he clarified that it was only in an effort to stop it from crashing into him or driving away.

When issuing a summons returnable to the Traffic Violations Bureau, officers must remove the violator back to their command if they fail to provide proof of identity or if doubt concerning their identity exists, Patrol Guide Procedure 209-09 (BR 04).

§ 87(2)(b) testified that PO Stolfaryder grabbed his arm while he was driving his motorcycle at approximately 25 miles per hour and almost caused him to crash. However, BWC confirms PO Stolfaryder's testimony that he grabbed the motorcycle as § 87(2)(b) turned perpendicular to ongoing traffic and attempted to make a U-turn. While BWC does show PO Stolfaryder briefly touch § 87(2)(b)'s wrist and leg when grabbing the motorcycle, § 87(2)(g) § 87(2)(b). Additionally, BWC further shows that § 87(2)(b) was not driving anywhere close to 25 miles per hour, and that he was looking right at PO Stolfaryder when the incident occurred as he tried to make the U-turn. § 87(2)(g) § 87(2)(b). It is therefore recommended that **Allegation A** be closed as **Unfounded**.

BWC confirms § 87(2)(b)'s testimony that he initially refused to provide his ID, and that PO Mariconi told him that he would be arrested if he continued to refuse to provide it. § 87(2)(g) § 87(2)(b). It is therefore recommended that **Allegation B** be closed as **Within NYPD Guidelines**.

Allegation (C) Discourtesy: Police Officer Nicholas Stolfaryder spoke discourteously to

§ 87(2)(b) PO Stolfaryder's BWC (BR 01), beginning at the 4:30 minute mark, showed § 87(2)(b) tell him that he did not know who PO Stolfaryder was when he first jumped out into the street in front of the motorcycle. PO Stolfaryder responded by asking § 87(2)(b) "Do you see a lot of people in full fucking uniform?"

§ 87(2)(b) did not allege any use of profanity being made by PO Stolfaryder during the incident (BR 02).

PO Stolfaryder testified (BR 03) that he used the word, "fucking," when speaking to § 87(2)(b) during the incident. PO Stolfaryder acknowledged that his use of profanity was made out of

frustration towards § 87(2)(b) for being verbally aggressive towards him throughout the entire incident.

Police officers must respect the dignity of each individual and render services with courtesy and civility, Patrol Guide Procedure 200-02 (BR 05). While officers are permitted to use discourteous language during stressful situations, this permission is extended only when scenes are so chaotic that the duty of courteousness and professional behavior should be overridden by the immediate need to maintain order, Disciplinary Case No. 2017-17005 (BR 06).

BWC confirmed PO Stolfaryder's testimony that he used the word, "fucking," while speaking to § 87(2)(b) § 87(2)(g)

it is recommended that **Allegation C** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 07).
- PO Stolfaryder has been a member of service for one year and this is the first CCRB complaint in which he has been a subject (BR 08).
- PO Mariconi has been a member of service for 11 years and has been a subject in two CCRB complaints and two allegations, neither of which were substantiated (BR 09).

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of July 20, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (BR 10).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad: 6

Investigator:	<u>Samuel Edison</u>	<u>Investigator Edison</u>	<u>07/21/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Jessica Peña</u>	<u>IM Jessica Peña</u>	<u>7/21/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date